



File No.: EXP202314732

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 18/04/2023, the Technological Research Group of the National Police in ***LOCALIDAD.1 informed this Agency of the facts reported by the parents of a 13-year-old minor regarding the publication on social media TikTok and Instagram of a video in which the minor appeared, without permission or consent from her parents. Specifically, the video in question was published at the following addresses:

- ***URL.1

- ***URL.2

Additionally, the National Police indicated that the video went viral with ***CANTIDAD.1 views on the indicated TikTok account and with interactions on other networks, such as Twitter, by users of this network with ***CANTIDAD.2 followers and ***CANTIDAD.3 views of the video on that social network. Finally, the document sent by the National Police includes the following personal data of the party being claimed:

Name and surname: A.A.A.

ID: ***NIF.1

Address: ***DIRECCION.1

Email: ***EMAIL.1

SECOND: On 19/04/2023, the Director of the Spanish Agency for Data Protection sent a letter to the General Subdirectorate of Data Inspection indicating:

“It has been brought to the attention of this Agency, through communication ***REFERENCIA.1, a possible infringement in the processing of personal data related to the facts described below.

The Technological Research Group of the National Police in ***LOCALIDAD.1 informs the AEPD that the parents of a minor (13 years old) have reported the publication on social media by the respondent (TikTok and Instagram, in particular) of a video in which the girl appears, ‘without the knowledge, permission, and authorization of her parents.’ The police expressly state that ‘The video has gone viral with ***CANTIDAD.1 views on the TikTok account of the respondent and with interactions on other networks such as Twitter, by users of this network with ***CANTIDAD.2 followers and with ***CANTIDAD.3 views of the video on this network.’ Although the video is no longer available on the TikTok and Instagram profiles of the original poster, it has been verified that it is available on social media, particularly Twitter, through third-party profiles such as ***USUARIO.1_ and ***USUARIO.2. Therefore, the General Subdirectorate of Data Inspection is urged to initiate ex officio Preliminary Investigation Actions aimed at verifying these facts.”

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGGDD), being aware of the following points:

1) On 20/04/2023, this Agency requested TWITTER INTERNATIONAL UNLIMITED COMPANY information regarding the session IP addresses from which the tweets with the image were published on the profiles of “***USUARIO.2” (on ***FECHA.1 at ***HORA.1) and “***USUARIO.1_” (on ***FECHA.1 at ***HORA.2 pm) or, failing that, the last five IP addresses of each of those profiles.

2) By means of a diligence carried out by this Agency on 24/04/2023, the following verifications were incorporated into the inspection actions:

- Conducted on 18/04/2023:

- ***URL.3. Under the title “***TITULO.1” the video in question was published on the Twitter profile

***USUARIO.2 on ***FECHA.1 at ***HORA.1. The number of views amounts to (...) million.

- ***URL.4. Under the title "****TITULO.2" the video in question was published on the Twitter profile @***USUARIO.1 on ***FECHA.1 at ***HORA.2. The number of views amounts to (...) million.

3) By means of a diligence carried out by this Agency on 25/04/2023, it was verified that the reported contents have been removed from, among others, the following electronic addresses:

- ***URL.1 (TikTok profile of the party being claimed)

- ***URL.2 (Instagram profile of the party being claimed)

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***URL.3

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***URL.4

4) On 16/05/2023, this Agency received a response prepared by TWITTER INTERNATIONAL UNLIMITED COMPANY to the information request dated 20/04/2023 (unofficial translation, the original in English):

"According to our Privacy Policy (<https://twitter.com/en/privacy>), Twitter does not disclose account information unless required by a valid legal process. If you work with the police, they may assist you with the appropriate and correct legal process to obtain such information. If law enforcement contacts Twitter directly, we can cooperate with them and assist them in their investigation. You may refer law enforcement agents to our guidelines for law enforcement.

Please visit the Twitter Help Center for more information:

<https://help.twitter.com/en/rules-and-policies/twitter-law-enforcement-support>"

5) On 16/10/2023, new documentation was received at this Agency, with registration number

***REFERENCIA.2, sent by the National Police, including the referral made to the Investigating Court No. 6 of ***LOCALIDAD.1. It includes information related to the facts reported to this Agency, including that provided by the parents of the minor regarding the mocking and insulting messages their daughter was receiving and the information she had received from the respondent stating that the recording would not be published, screenshots of evidence found on the social media profiles of the reported individual and from the newspaper 20minutos, as well as the identification of the holder of the referred profiles.

6) The respondent has 50,900 followers on TikTok, 6,706 on Instagram, and 833 on YouTube as of April 9, and the information sent to this Agency describes them as a well-known person in the area with a large number of followers.

FOURTH: On 10/04/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for:

- The alleged infringement of Article 9 of the GDPR, classified in Article 83.5.a) of that regulation, administrative fine of 3,000€ (three thousand euros).

- The alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of that regulation, administrative fine of 3,000€ (three thousand euros).

- The alleged infringement of Article 5.1 c) of the GDPR, classified in Article 83.5.a) of that regulation, administrative fine of 3,000€ (three thousand euros).

- The alleged infringement of Article 13 of the GDPR, classified in Article 83.5.b) of that regulation, administrative fine of 1,000€ (one thousand euros).

Furthermore, the aforementioned initiation agreement ordered the respondent to adopt the provisional measure consisting of suspending the processing of personal data of those individuals under 14 years of age for whom parental consent is not obtained and to notify this Agency.

This initiation agreement, in accordance with the rules established in the LPACAP, was notified to the

respondent on 23/04/2024, as evidenced by the acknowledgment of receipt in the file.

FIFTH: On 06/05/2024, the respondent submitted, in a timely manner, a written statement in which they claimed to be a content creator on social media from ***LOCALIDAD.1 and that, after being recognized by a group of 20 children in the ***CENTRO.1 shopping center and due to their insistence, they decided to record the video in question. They stated that its content "is consumed by teenagers and I know the excitement it can bring to appear in a video, that was the reason I recorded with them." They also indicated that, initially, they refused because they were under 16 years old and did not have their parents' consent, but after the recording was made, "they were told to inform their parents and in case of any problem to write to me and the content would not be uploaded. None did, so I assumed they didn't mind."

Finally, they stated that they removed the video from their profile when the mother of the 13-year-old girl who appeared in the video requested it, apologizing for what had happened.

SIXTH: On 19/07/2024, the instructing body of the procedure issued a resolution proposal in which it proposed to impose the following fines:

- For the infringement of Article 9 of the GDPR, classified in Article 83.5.a) of that regulation, administrative fine of 3,000€ (three thousand euros).
- For the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of that regulation, administrative fine of 3,000€ (three thousand euros).
- For the infringement of Article 5.1 c) of the GDPR, classified in Article 83.5.a) of that regulation, administrative fine of 3,000€ (three thousand euros).
- For the infringement of Article 13 of the GDPR, classified in Article 83.5.b) of that regulation, administrative fine of 1,000€ (one thousand euros).

Furthermore, the aforementioned resolution proposal aimed to make definitive the measure consisting of the suspension of the processing of personal data of minors under 14 years of age in cases where the respondent does not have the consent of the parents.

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This proposed resolution, in accordance with the rules established in the LPACAP, was notified to the respondent on 23/07/2024, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: Once the aforementioned proposed resolution was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On ***DATE.1 at ***TIME.1, a video (...) was published on the social media profile Twitter (now X) ***USER.2, under the title "****TITLE.1", in which a minor is seen answering questions related to her sexual life. On the left side, the TikTok profile ***USER.3 is displayed. The number of views as of 18/04/2023 amounts to (...).

SECOND: On ***DATE.1 at ***TIME.2, the video described in the previous section was published on the social media profile Twitter (now X) ***USER.1, under the title "****TITLE.2". The number of views as of 18/04/2023 amounts to (...).

THIRD: On 18/04/2023, the Technological Research Group of the National Police in ***LOCALITY.1 informed this Agency about the publication of a video on the social media platforms TikTok and Instagram featuring a 13-year-old minor, without the consent of her parents, at the following addresses:

- ***URL.1
- ***URL.2

In the document, A.A.A. was identified as the holder of the mentioned social media profiles, with ID ***NIF.1, address ***ADDRESS.1, and email ***EMAIL.1.

FOURTH: As of 25/04/2023, the video in question does not appear at the following electronic addresses:

- ***URL.1
- ***URL.2
- ***URL.3
- ***URL.4

FIFTH: There is no confirmation of compliance by the respondent with the provisional measure agreed upon in the initiation agreement, which consists of suspending the processing of personal data of individuals under 14 years of age for whom parental consent has not been obtained and notifying this Agency.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the respondent has carried out two data processing activities: on one hand, the recording of a video and, on the other, its subsequent dissemination. The video features the image and voice of a 13-year-old minor.

The voice and image of a person, according to Article 4.1 of the GDPR, are personal data as they make the individual identifiable, and their protection is therefore subject to this GDPR:

"'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

In this regard, the report 139/2017 from the Legal Advisory Office of this Agency states that "the image, as well as the voice of a person, is personal data, just as any information that allows determining, directly or indirectly, their identity will be."

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For its part, Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction."

The capture and/or publication of a person's voice and image that identifies or makes them identifiable constitutes processing of personal data and, therefore, the controller of such processing is obliged to comply with the obligations set forth for the data controller in the GDPR and in the LOPDGDD.

It should also be noted that the respondent carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, being the TikTok and Instagram profiles where the video in question has been disseminated under its ownership.

III

Claims made

This Agency has no record of the respondent having submitted a written statement of claims against the proposed resolution.

However, as already indicated in the proposed resolution, regarding the claims made by the respondent against the initiation agreement of the present sanctioning procedure, the following considerations were made.

The respondent claims to be a content creator on social media and that, after being approached by a group of minors who recognized him at the shopping center ***CENTRO.1, he decided to record the video in question. He claims that he asked the minors to inform their parents about the recording and, in case of disagreement, he would not upload the content. Since he did not receive any message, he decided to publish the video. Therefore, he understands that the processing of personal data carried out, in this case consisting of the recording and subsequent dissemination of a video featuring a minor under 13 years old responding to questions posed by the respondent that reveal information related to her sexual life, would be based on consent.

However, he states that he removed the content from his profile when the mother of the 13-year-old minor appearing in it requested him to do so, apologizing for what had happened.

In this regard, this Agency wishes to remind that, as indicated in the initiation agreement, any processing that affects special categories of personal data, such as, in this case, data related to the sexual life of a minor under 13 years old; requires the presence of one of the circumstances set out in Article 9.2 of the GDPR that lifts the general prohibition of such processing and, subsequently, the existence of one of the legitimizing bases of Article 6 of the GDPR.

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From the allegations presented by the responding party, it can be inferred that they believe they had the consent of the minors and their parents when they published the video, as they did not receive any contrary message from the parents. However, it should be noted that our legal system does not contemplate tacit consent in relation to the processing of personal data, since Articles 4.11 and 6.1 of the GDPR require the concurrence of the following conditions for it to be considered valid: free, specific, informed, and unambiguous. Furthermore, given that the individual in question is a minor under 14 years of age, the responding party was required to obtain the consent of the parents, as expressly stated in Article 7 of the LOPDGDD.

Therefore, this allegation is dismissed.

IV

Processing of special categories of personal data

Article 9 of the GDPR provides as follows:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply where one of the following applies:

- a) the data subject has given explicit consent to the processing of those personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;
- b) the processing is necessary for compliance with a legal obligation to which the controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and

freedoms of the data subject;

d) the processing relates to personal data which the data subject has manifestly made public;

e) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity;

f) the processing is necessary for reasons of substantial public interest, on the basis of Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject;

g) the processing is necessary for purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care or treatment, or the management of health or social care systems and services, on the basis of Union or Member State law or pursuant to a contract with a health professional and subject to the conditions and safeguards referred to in paragraph 3;

h) the processing is necessary for reasons of public interest in the area of public health, such as protecting against serious cross-border threats to health, or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, on the basis of Union or Member State law which provides for suitable and specific measures to safeguard the rights and freedoms of the data subject, in particular the secrecy of professional communications;

i) the processing is necessary for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), on the basis of Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject.

3. Personal data referred to in paragraph 1 may be processed for the purposes referred to in paragraph 2, letter h), when the processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union or Member State law or with the rules laid down by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union or Member State law or the rules established by the competent national authorities.

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4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or health-related data.”

This procedure is initiated because this Agency became aware of the publication of a video on the Instagram and TikTok profile of the respondent ***USER.4 and ***USER.3) in which a minor under 13 years old appeared, without the consent of her parents for the capture of her image and voice, and subsequent dissemination, responding to questions posed by the respondent that reveal data related to her sexual life. The voice and image of the minor were clearly visible in the video, and could be recognized by third parties, as demonstrated by the messages received by the complainant, which prompted the notification of these facts to this Agency.

Personal data related to sexual life, by their nature, belong to the special categories of data regulated in Article 9 of the GDPR, which establishes a general prohibition on their processing. Therefore, their processing requires the concurrence of one of the circumstances set out in paragraph 2 of the aforementioned article that lifts the general prohibition on processing.

However, there is no record in the proceedings that any of the circumstances that lift the prohibition on processing such personal data are present. Nor is there any record, as previously noted, of prior consent that meets the requirements of data protection regulations.

Therefore, in accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 9 of the GDPR.

V

Classification and qualification of the infringement of Article 9 of the GDPR

The aforementioned infringement of Article 9 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the limitation period, Article 72.1 “Very serious infringements” of the LOPDGDD indicates:

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“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law being present; (...)”

VI

Sanction for the infringement of Article 9 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the following circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD should be taken into account:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damage suffered (Article 83.2.a) of the GDPR). The publication of the video in which the minor under 13 years old appears on the social networks of the respondent resulted in immediate and extensive dissemination of the content, considering the number of followers of the respondent, as well as its recognition by a large number of social media users. This fact had direct repercussions on the affected party, as evidenced by the large number of messages received that echoed the content of the video.

- The intent or negligence in the infringement. The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In this sense, it establishes that in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, professionalism that is present in this case, given that, in their capacity as a social media user, the respondent, who describes themselves as a content creator on social media, processes personal data that, as in this case, may relate to minors.

In this case, although no direct intent is suggested, negligence arises from the failure to adopt the necessary measures to ensure that the processing of personal data refers to data subjects who have consented and have the capacity to do so.

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Impact on the rights of minors (Article 76.2.f of the LOPDGDD).

The respondent processed personal data belonging to a minor aged 13 years, therefore, considering her special vulnerability, it can be understood that an infringement of her right to the protection of personal data would have particularly significant implications and consequences.

A vulnerability recognized by the GDPR, which states in its Recital 38 that children deserve specific protection of their personal data, as they may be less aware of the risks, consequences, safeguards, and rights concerning the processing of personal data.

The balance of the aforementioned circumstances allows for the imposition of a fine of €3,000.00 (three thousand euros) for the infringement of Article 9 of the GDPR.

VII

Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the consideration of the processing of personal data as lawful are enumerated in Article 6.1 of the GDPR:

1. The processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract."

The processing of special categories of personal data requires, along with the concurrence of a circumstance provided for in Article 9.2 of the GDPR that lifts the prohibition on processing such categories of personal data, the concurrence of one of the legitimizing grounds in Article 6 of the GDPR. In this sense, the existence of circumstances that would allow for lifting the prohibition on processing special categories of data, such as those relating to sexual life, do not, by themselves, constitute a legitimizing basis for their processing.

In the present case, the respondent proceeded to record the image and voice of the minor while she was answering questions about her sexual life. According to the provisions of Article 6 of the GDPR, although consent could be the legal basis that might legitimize the respondent to capture the personal data of the 13-year-old minor, upon reviewing the documentation in the administrative file and the

allegations presented by the respondent to the initiation agreement, it is evident that the aforementioned legitimizing ground does not exist in the processing of data carried out. This is because the respondent has not proven that they had the consent of her parents, which is essential according to the provisions of Article 7.1 of the LOPDGDD, as she is under 14 years old. Consequently, in accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 6.1 of the GDPR by proceeding to record the image and voice of a minor aged 13 years.

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Typification and Qualification of the Violation of Article 6.1 of the GDPR

The aforementioned violation of Article 6.1 of the GDPR constitutes the commission of the violation typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72.1 "Very serious violations" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein, and in particular, the following: (...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679; (...)"

IX

Sanction for the Violation of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the following circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD should be taken into account:

- The nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damage and harm suffered (Article 83.2.a) of the GDPR). The recording by the respondent of the video in which the minor under 13 years old appears, without the necessary consent that, in this case, corresponds to be granted by her parents, had immediate repercussions on the minor, reflected in a high number of messages received commenting on the published video. All this considering the number of followers of the respondent.

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- The intent or negligence in the violation. The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In this sense, it establishes that in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, professionalism that is

present in this case, given that, in her capacity as a social media user, the respondent processes personal data that, as occurs in this case, may relate to minors.

In this case, although no direct intent is suggested, negligence arises from the failure to adopt the necessary measures to ensure that the processing of personal data refers to data subjects who have consented and have the capacity to do so.

- The categories of personal data affected by the violation (Article 83.2.g) of the GDPR). In the video, the minor responds to a series of questions that reveal personal data about her sexual life.

- The impact on the rights of minors (Article 76.2.f) of the LOPDGDD). The respondent processed personal data belonging to a minor aged 13 years, so, considering her special vulnerability, it can be understood that an impact on her right to the protection of personal data would have particularly significant implications and consequences.

A vulnerability that the GDPR recognizes by stating in its recital 38 that children deserve specific protection of their personal data, as they may be less aware of the risks, consequences, safeguards, and rights concerning the processing of personal data.

The balance of the above circumstances allows for the imposition of a fine of €3,000.00 (three thousand euros) for the violation of Article 6.1 of the GDPR.

X

Minimization of Personal Data

Individuals have the power of disposition over their personal data, including their voice and image, as well as over their dissemination, resulting, without a doubt, in deserving protection the person whose personal data is disseminated in violation of the legal order.

Thus, the Constitutional Court ruling STC 292/2000, of November 30, states that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or use.

These powers of disposition and control over personal data, which constitute part of the content of the right

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Fundamental to data protection is the legal right to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether that be the State or a private individual. This right to consent to the knowledge and processing, whether computerized or not, of personal data requires, as indispensable complements, on one hand, the ability to know at all times who holds that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.

In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set out in Article 5 of the GDPR. We highlight Article 5.1.c) of the GDPR, which states that:

“1. Personal data shall be:

(...)

b) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (“data minimization”);”

The principles relating to processing are, on one hand, the starting point and the closing clause of the legal framework for data protection, constituting true guiding rules of the system with significant expansive force; on the other hand, due to their high level of specificity, they are mandatory norms that can be infringed.

In this case, the dissemination of a video on social media has occurred, which constitutes the processing of personal data of a minor under 13 years of age that must be understood as excessive,

given that the news could have been reported without the need to identify the minor through the video. At this point, it is necessary to bring to mind the jurisprudence that analyzes the relationship between freedom of expression, on one hand, and the rights of those affected by informational content. Thus, the European Court of Human Rights (ECHR), in its judgment of June 19, 2012, delivered in case 1593/2006, states the following:

Although the press must not exceed certain limits, particularly with regard to the reputation and rights of others or to the proper administration of justice, its duty is, nevertheless, to impart, in a manner consistent with its obligations and responsibilities, information and ideas on all matters of public interest (paragraph 48)

(...), the publication of photographs and articles whose sole purpose is to satisfy the curiosity of a particular reader regarding the details of the private life of a public figure cannot be considered to contribute to any debate of general interest to society, even though the person is known to the public.

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Such conditions, freedom of expression requires a stricter interpretation (...).

(paragraph 50).

(...) When verifying whether the authorities have achieved a fair balance between two protected values guaranteed by the Convention that may conflict with each other in such cases - the freedom of expression protected by Article 10 and the right to respect for private life enshrined in Article 8 - the Court must balance the public interest in the publication of information and the need to protect private life (see *Hachette Filipacchi Associés v. France*, no. 71111/01, § 43, ECHR 2007-VII). (Paragraph 51) And it concludes that, since the parties affected by the news are not public figures, the disclosure of their identity cannot be considered essential to understanding the details of the case (paragraph 57) and that, there is no doubt that the preservation of the most intimate sphere of the life of a minor who had become a victim of a custody dispute and had not entered the public sphere deserved particular protection due to their vulnerable position. (paragraph 59)

In this sense, and considering the circumstances of the analyzed case, in which personal data - voice and image of a 13-year-old minor - have been disseminated as part of informational content directed by the claiming party to their followers, it must be understood that the limits indicated by jurisprudence regarding the necessary safeguarding of the fundamental rights of those affected are applicable.

On the other hand, and being of interest in the case at hand, it should be mentioned the ruling 27/2020, of February 24, issued by the Constitutional Court in its appeal 1379/2017, in which it analyzes the limits that must be imposed on the use of a person's image as an informational resource. Thus, after pointing out that we must insist again that the physical aspect, as a basic instrument of identification and external projection and an essential factor for one's own recognition as a person, constitutes the first element shaping the personal sphere of every individual (STC 156/2001, FJ 6 and 99/1994, FJ 5), it concludes that the first rule to achieve the protection of this fundamental right is that in order to capture, reproduce, and/or publish the image of a person, their unequivocal consent is indispensable, being exceptional the cases in which such authorization is not required (...)

It then reasons as follows:

"When the right to one's own image collides with other goods or constitutionally protected rights, particularly the freedoms of expression and information (art. 20.1.a and d CE), the different conflicting interests must be weighed, and, taking into account the specific circumstances of each case, it must be decided which interest deserves greater protection" (STC 105/1990, of June 6; 72/2007, FJ 5 and 156/2001, FJ 6). (...) As can be easily deduced, this occurs not only in its confrontation with the rights to honor and privacy but also with the fundamental right to one's own image, for example, in those cases where information disseminates photographs or video clips that can only be understood as mere instruments for satisfying others' curiosity and have been included not...

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with an informative function, but with the purpose of satisfying the expectation that, in those terms, a certain news item may raise.

(...) the image of an anonymous or unknown individual, or in other words, one who does not hold a public office or a profession of notoriety, even if captured in a public place, cannot be used without their express consent, except in two cases. First, when the person appears in the photograph merely as an accessory and inconsequential element, without any prominence. Secondly, in the case where the initially anonymous person's participation in the newsworthy event is principal or prominent, in which case their fundamental right to their image must yield to the right to information, precisely due to the non-accessory role that the subject has assumed.

(...) Although the risks of intrusion have increased exponentially with the massive use of social networks, to ward them off we must continue to rely on the same basic principle that governs the analog environment and affirm that the constitutional recognition of the fundamental rights included in Article 18 of the Spanish Constitution entails the individual's power to control the data circulating on the social network that concerns them. Therefore, we reiterate that, unless there is unequivocal authorization for the capture, reproduction, or publication of the image by its owner, the interference with the fundamental right to one's own image must necessarily be justified by the preponderant public interest in accessing and disseminating it.

(...) Consent only protects what constitutes the object of the declaration of will. The holder of the fundamental right must authorize the specific act of using their image and the purposes for which it is granted. The consent given, for example, for the capture of the image does not extend to other subsequent acts, such as its publication or dissemination.

In the present case, the treatment carried out by the defendant was excessive, as the dissemination of the voice and image of the minor under 13 years old was unnecessary for the informational purpose that could be understood to be pursued by the defendant. A purpose that, on the other hand, could have been achieved without carrying out this excessive processing of personal data.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the defendant, for violation of Article 5.1.c) of the GDPR.

XI

Classification and qualification of the infringement of Article 5.1 c) of the GDPR

The aforementioned infringement of Article 5.1.c) of the GDPR constitutes the commission of one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

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"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for violations, the violation indicated in the previous paragraph is considered very serious in accordance with Article 72.1.a) of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, violations that constitute a substantial breach of the articles mentioned therein are considered very serious and shall be subject to a three-year statute of limitations, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

XII

Sanction for the violation of Article 5.1.c) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR.

- The nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damages suffered (Article 83.2.a) of the GDPR). The dissemination by the respondent of the video in which the minor aged 13 appears, without the necessary consent that, in this case, corresponds to be granted by her parents, had immediate repercussions on the minor, reflected in a high number of messages received commenting on the published video. All this also taking into account the number of followers of the respondent, which favored the knowledge of the video by a large number of social media users.

- The intentionality or negligence in the violation. The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In this sense, it establishes that in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, professionalism that is present in this case, given that, in her capacity as a social media user, the respondent processes personal data that, as is the case here, may relate to minors.

In this case, although no direct intent is suggested, negligence arises from the failure to adopt the necessary measures to ensure that the processing of personal data refers to data subjects who have consented and have the capacity to do so.

- The categories of personal data affected by the violation (Article 83.2.g) of the GDPR). In the video subject to dissemination, the minor responds to a series of questions that reveal personal data about her sexual life.

- The impact on the rights of minors (Article 76.2.f) of the LOPDGDD). The respondent processed personal data belonging to a minor aged 13, so, given her special vulnerability, it can be understood that an impact on her right to the protection of personal data would have particularly significant implications and consequences.

A vulnerability that the GDPR recognizes by stating in its recital 38 that children deserve specific protection of their personal data, as they may be less aware of the risks, consequences, guarantees, and rights concerning the processing of personal data.

The balance of the above circumstances allows for the imposition of a fine of €3,000.00 (three thousand euros) for the violation of Article 5.1.c) of the GDPR.

XIII

Transparency of personal data processing

Article 13 "Information to be provided when personal data are obtained from the data subject" provides as follows:

"1. When personal data relating to a data subject are obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data are obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;

- b) the contact details of the data protection officer, where applicable;

- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;

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d) the recipients or categories of recipients of the personal data, if applicable;
 e) if applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- b) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- c) the right to lodge a complaint with a supervisory authority;
- d) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- e) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, having examined the documentation in the administrative file and the allegations presented by the respondent regarding the initiation agreement, it is understood that the respondent did not comply with the obligation to inform the data subject whose data is being processed; information that, given that it concerns a minor under 13 years of age, should have been directed to their parents.

Furthermore, it can be stated that the information received by the minor under 13 years of age at the time of being recorded—and, possibly, the information that may have been transmitted to their parents to obtain their consent—was incomplete in relation to what is required under Article 13 of the GDPR. In this regard, it is noted in the file that the information that the purpose of recording the video would be its dissemination on the blog authored by the respondent was not provided, so it can be considered that the information provided to her was incomplete, given that the interview conducted with the minor was published on their TikTok and Instagram profiles. However, even if she had received all the information, it would not be valid since that information should have been provided to the parents. Consequently, in accordance with the evidence available at this stage of the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the respondent, for violation of Article 13 of the GDPR.

XIV

Classification and qualification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR which, under the heading "General conditions for the imposition of administrative fines," states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the

preceding financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)"

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered minor in accordance with Article 74 of the LOPDGDD, which establishes that "Minor infringements shall be those of a merely formal nature mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679; (...)"

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XV

Sanction for the infringement of Article 13 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the following circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD should be taken into account:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the level of damage and harm suffered (Article 83.2.a of the GDPR). The recording of the video featuring the 13-year-old minor and its subsequent publication on the social media of the respondent party, with immediate dissemination, which was facilitated by the respondent party having a large number of followers on social media, had immediate repercussions on the minor, reflected in a high number of messages received commenting on the published video.
- The intentionality or negligence in the infringement. In the case at hand, from the information that has been known so far, it can be inferred that, although the affected minor was informed of the recording of the video, the claimant assured her that it would not be published. This assertion could lead to the conclusion that the 13-year-old minor directly asked about the possibility of the video being published and received a negative response. Therefore, the subsequent publication of the content could be considered intentional, despite the fact that a different response to the question about its possible dissemination could have led to a refusal to allow the minor to participate in the recording of the video. However, that information should have been provided to the parents since the minor cannot consent to the processing of personal data.
- The categories of personal data affected by the infringement (Article 83.2.g of the GDPR). In the video, the minor responds to a series of questions that reveal personal data about her sexual life.
- The impact on the rights of minors (Article 76.2.f of the LOPDGDD). The respondent party processed personal data belonging to a 13-year-old minor, so, considering her special vulnerability, it can be understood that an infringement of her right to personal data protection would have particularly significant implications and consequences. A vulnerability that the GDPR recognizes by stating in its recital 38 that children deserve specific protection of their personal data, as they may be less aware of the risks, consequences, guarantees, and rights concerning the processing of personal data.

The balance of the above circumstances allows for the imposition of a fine of €1,000 (one thousand euros) for the infringement of Article 13 of the GDPR.

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XVI

Adoption of Measures

The violations in this matter may result in the imposition on the responsible party of the obligation to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such cases, this Agency may require the responsible entity to, within the determined timeframe, adjust its actions to comply with personal data protection regulations, to the extent expressed in the Legal Grounds of this agreement.

Considering the circumstances analyzed in this sanctioning procedure resolution, it is understood that the party being complained against may be processing personal data that affects individuals under 14 years of age and for which they should have the consent of their parents. Therefore, it is considered that the continuation of the processing could cause very serious and irreparable harm to the rights of the potential affected parties.

It should be noted that in the initiation agreement of this sanctioning procedure, it was agreed to impose as a provisional measure the suspension of the processing of personal data concerning individuals under 14 years of age by the party being complained against in cases where they did not have the consent of the parents. Thus, in order to safeguard and guarantee the rights and freedoms of the complaining party, it is agreed to elevate the provisional measure imposed to a definitive measure. On the other hand, in accordance with the aforementioned Article 58.2 d) of the GDPR, the party being complained against is also required to notify this Agency within 1 month from the date this resolution becomes final and enforceable, of the adoption of measures that ensure that the recording and potential dissemination of personal data is carried out with the prior consent of the affected individual and, in the case of individuals under 14 years of age, of their parents.

The imposition of these measures is compatible with imposing an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the adoption of measures imposed by this agency in the resolution that concludes this procedure may be considered an administrative violation in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1:

- For the infringement of Article 9 of the GDPR, classified under Article 83.5.a) of said regulation, an administrative fine of 3,000€ (three thousand euros).
- For the infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of said regulation, an administrative fine of 3,000€ (three thousand euros).
- For the infringement of Article 5.1 c) of the GDPR, classified under Article 83.5.a) of said regulation, an administrative fine of 3,000€ (three thousand euros).
- For the infringement of Article 13 of the GDPR, classified under Article 83.5.b) of said regulation, an administrative fine of 1,000€ (one thousand euros).

SECOND: To confirm and elevate to final the provisional measure imposed on A.A.A., with NIF ***NIF.1, consisting of suspending the processing of personal data of minors under 14 years of age in cases where there is no consent from the parents; compliance must be evidenced by the day following the notification of this sanctioning procedure resolution.

Furthermore, to order A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 1 month from the date this resolution becomes final and enforceable, to prove that measures have been adopted to ensure that the recording and potential dissemination of personal data is carried out with the prior consent of the affected party and, in the case of minors under 14 years of age, from their parents.

THIRD: TO NOTIFY this resolution to A.A.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

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